City of Pembroke Pines, FL

City of Pembroke Pines
Charles F. Dodge City Center
601 City Center Way
Pembroke Pines, FL 33025

Meeting Minutes

Wednesday, February 2, 2022

6:30 PM

6:30 PM Public Hearing. 6:30 PM (or at such time as public hearing adjourns) Regular Commission Meeting. Exhibits #4, #5, and #6 were added to Item #12 and republished.

Commission Chambers

City Commission

Mayor Frank C. Ortis
Vice Mayor Thomas Good, Jr.
Commissioner Angelo Castillo
Commissioner Iris A. Siple
Commissioner Jay D. Schwartz

6:30 PM PUBLIC HEARING CALLED TO ORDER

ROLL CALL

Present 5 - Mayor Frank Ortis, Vice Mayor Thomas Good Jr., Commissioner Angelo Castillo, Commissioner Iris A. Siple, and Commissioner Jay D. Schwartz

Mayor Ortis participated by phone.

Also present: City Manager Charles Dodge, Assistant City Attorney Jacob Horowitz, and City Clerk Marlene Graham.

OPEN PUBLIC HEARING

PH-1 22-0039

THE PURPOSE OF THIS PUBLIC HEARING IS TO ADVISE ALL INTERESTED PARTIES OF THE CITY'S INTENT TO USE THE UNIFORM METHOD FOR THE LEVY, COLLECTION, AND ENFORCEMENT OF A NON-AD VALOREM SPECIAL ASSESSMENT TO RECOVER THE COSTS ASSOCIATED WITH THE CITY'S RESIDENTIAL SOLID WASTE COLLECTION SERVICES.

MOTION TO ADOPT PROPOSED RESOLUTION 2022-R-03. PROPOSED RESOLUTION 2022-R-03 IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, SETTING FORTH THE CITY'S INTENT TO USE THE UNIFORM METHOD FOR THE LEVY AND COLLECTION OF A NON-AD VALOREM SPECIAL ASSESSMENT TO BE LEVIED UPON CERTAIN REAL PROPERTIES LYING WITHIN THE MUNICIPAL BOUNDARIES OF THE CITY, AS MORE PARTICULARLY DESCRIBED IN EXHIBIT "A," ATTACHED HERETO, TO RECOVER THE COSTS ASSOCIATED WITH CITY'S RESIDENTIAL SOLID WASTE COLLECTION SERVICES; STATING A NEED FOR SUCH LEVY; PROVIDING THAT A COPY OF THIS RESOLUTION SHALL BE FORWARDED TO THE PROPERTY APPRAISER, BROWARD COUNTY DIVISION OF FINANCIAL SERVICES (TAX COLLECTOR FOR BROWARD COUNTY) AND THE FLORIDA DEPARTMENT OF REVENUE; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

PROPOSED RESOLUTION 2022-R-03 IS ITEM # 18 ON THE AGENDA.

Vice Mayor Good called the meeting to order and opened the public hearing.

Assistant City Attorney Horowitz read Item PH-01 into the record by title and responded to the questions of the Commission regarding tax deductions.

Commissioner Schwartz and Commissioner Castillo spoke on the item.

Lisa Chong, Finance Director, addressed the questions of the Commission.

The following members of the public spoke on the public hearing item:

George Koren, 6751 SW 11th Street, Pembroke Pines, FL
Alberto Salvi, 1318 SW 172nd Terrace, Pembroke Pines, FL
Scott Barnett, 19346 SW 5th Street, Pembroke Pines, FL
Susan Snyder, 730 SW 191st Avenue, Pembroke Pines, FL whose email was read into the record by City Clerk Graham.
Kenneth Farkas, 5331 SW 199th Avenue, Pembroke Pines, FL

Vice Mayor Good closed the public hearing.

CLOSE PUBLIC HEARING

6:40 PM (or at such time at the Public Hearing adjourns) REGULAR MEETING CALLED TO ORDER

ROLL CALL

Present 5 - Mayor Frank Ortis, Vice Mayor Thomas Good Jr., Commissioner Angelo Castillo, Commissioner Iris A. Siple, and Commissioner Jay D. Schwartz

Mayor Ortis participated by phone.

Also present: City Manager Charles Dodge, Assistant City Attorney Jacob Horowitz, and City Clerk Marlene Graham.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by City Clerk Graham.

Acknowledgements

Vice Mayor Good called for a moment of silence in honor of the passing of Ms. Lenore Perry. Ms. Perry was an active resident of Pembroke Pines along with Ms. Rosalie Labate in the Hollybrook community.

Commissioner Siple spoke about the upcoming prayer vigil on February 14, 2022 in memory of those killed at the Marjory Stoneman Douglas High School. The prayer vigil will take place at 6:30 PM at the Charles F. Dodge City Center Plaza, 601 City Center Way, Pembroke Pines.

Commissioner Siple acknowledged the Team Niko Softball Tournament honoring a little boy named Niko Perros who lost his battle to pediatric brain cancer. Niko was the son of a firefighter.

Commissioner Siple spoke about the upcoming City Community Peace Picnic-Kindness Initiative on Saturday, February 5, 2022 at 11:00 AM.

PRESENTATIONS:

PRE-1 22-0057 PRESENTATION#1: MAYOR ORTIS WILL ANNOUNCE THE WINNER OF THE 2022 FLORIDA PREPAID SCHOLARSHIP RAFFLE SPONSORED BY THE PEMBROKE PINES CHARTER SCHOOL FOUNDATION, INC.

Vice Mayor Good announced the winner of the 2022 Florida Pre-Paid Scholarship Raffle Andrew Suah, Jr., a kindergarten student from the Pembroke Pines Charter School FSU Campus.

PRE-2 22-0051 PRESENTATION #2: PRESENTATION BY FLORIDA ATLANTIC UNIVERSITY (FAU) REGARDING REDISTRICTING OPTIONS FOR CITY COMMISSION ELECTION DISTRICTS.

Mike Stamm, Planning and Economic Director introduced Dr. James Gammack-Clark of Florida Atlantic University.

Dr. James Gammack-Clark, M.A., Ph.D. candidate (ABD)-Senior Instructor of the Geo-sciences Department at Florida Atlantic University, presented information via PowerPoint presentation about the Pembroke Pines Redistricting Report for the reconsideration of the Commission in the following categories: The City's Charter, Data, Redistricting Parameters, Existing District/Demographics, Map Alternatives, and the Evaluation of Future Growth were presented.

Dr. Gammack‑Clark recognized his colleagues who were also a part of the analysis research team: Dr. Ronald R. Schwartz‑Professor Emeritus of the Geo‑sciences Department, and Dr. Steven Bourassa, Professor of the Department of Urban and Regional Planning.

The analysis is performed every 10 years to make sure each of the districts is balanced as required by the City’s Charter. The analysis was based upon the 2020 Census, the current Districts, and the evaluations based upon future growth in order to provide alternatives.

The redistricting parameters were discussed and analyzed with two tables listed as 1.1 and 1.2, 2.1 and 2.2, and 3.1 and 3.2, which displayed the 2020 population and the projected population for 2023. The following alternatives were provided to balance and meet City’s districting guidelines and requirements:

Alternative 1 ‑ A minimalist approach to move territory from Districts 1 and 4 to Districts 2 and 3, respectively, with the smallest geographical change.

Alternative 2 - Adjusts the territory from Districts 1 and 4, with an effort to straighten Districts 2 and 3.

Alternative 3 - provides the option to move Colony Pointe from District 3 to District 2; creating a balance because each would have a major condominium community within their respective District.

Dr. Gammack-Clark concluded the final step would be for the Commission to select one of three alternatives, to be transmitted to the Broward Supervisor of Elections.

Associated with the Redistricting presentation is Item 15 on this agenda, Proposed Ordinance 2021-21, which would go before Commission for

first reading later in the meeting.

ANNOUNCEMENT OF ITEMS TO BE PULLED FROM AGENDA

No items pulled from the Agenda.

COMMISSION AUDITOR REPORT:

APPEALS OF BOARD OF ADJUSTMENT DECISIONS:

ITEMS AT THE REQUEST OF THE PUBLIC

No items at the request of the public.

ANNOUNCEMENT OF BOARD AND COMMITTEE APPOINTMENTS

Commissioner Castillo announced the following board appointees to the Citizens Budget Council:

Ms. Mariela Valdez and Mr. Charles Raether.

CONSENT AGENDA:

1. **21-1096** MOTION TO APPROVE THE PIGGY-BACK SERVICE AGREEMENT WITH FLOCK GROUP, INC. FOR THE LEASING/USE OF THIRTY SIX (36) INFRASTRUCTURE-FREE (SOLAR POWER + LTE), LICENSE PLATE RECOGNITION READERS WITH VEHICLE FINGERPRINT TECHNOLOGY UTILIZING THE PRICING FROM THE CITY OF GREENVILLE, SOUTH CAROLINA REQUEST FOR PROPOSAL NO. 21-3746 FOR A TOTAL AMOUNT NOT TO EXCEED $99,000 PURSUANT TO SECTION 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

2. **22-0001** MOTION TO REJECT ALL BIDS FOR IFB # PSPW-21-06 "REPLACEMENT OF WINDOWS AND DOORS TO IMPACT RATED MATERIAL AT PINES POINT SENIOR RESIDENCE" AND TO AUTHORIZE THE RE-ADVERTISEMENT OF THE SOLICITATION AS IFB # PSPW-22-01 "REPLACEMENT OF WINDOWS AND DOORS TO IMPACT RATED MATERIAL AT PINES POINT SENIOR RESIDENCE".

A motion was made to approve on the Consent Agenda

3. 22-0032

MOTION TO APPROVE SHINE PROGRAM MEMORANDUM OF UNDERSTANDING AND ADDENDUM TO MEMORANDUM OF UNDERSTANDING BETWEEN AGING AND DISABILITY RESOURCE CENTER OF BROWARD COUNTY AND THE CITY OF PEMBROKE PINES.

A motion was made to approve on the Consent Agenda

4. 22-0041

MOTION TO APPROVE THE RENEWAL OF CISCO SMARTNET TOTAL CARE FOR THE CITY'S CORE CISCO INFRASTRUCTURE HARDWARE IN THE AMOUNT NOT TO EXCEED $101,238.06 FROM NETSYNC UTILIZING THE STATE OF FLORIDA ALTERNATE CONTRACT SOURCE #43220000-NASPO-19-ACS (DATA COMMUNICATIONS PRODUCTS AND SERVICES), PURSUANT TO SECTION 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

5. 22-0042

MOTION TO APPROVE THE FIFTH AMENDMENT TO THE AGREEMENT BETWEEN THE CITY OF PEMBROKE PINES AND THE MCCLATCHY COMPANY, LLC. FOR THE PRINTING OF PEMBROKE PINES CITY CONNECT FOR AN ANNUAL COST NOT TO EXCEED $29,028.

A motion was made to approve on the Consent Agenda

8. 22-0040

MOTION TO APPROVE THE PURCHASE OF WATER DISTRIBUTION MATERIALS NEEDED FOR CONSTRUCTION OF THE HEALTH PARK WATERMAIN EXTENSION PROJECT FROM FORTILINE, INC., UTILIZING PRICING FROM THE CITY OF BOYNTON BEACH AGREEMENT BID #083-1412-21, FOR AN AMOUNT NOT TO EXCEED $86,843.87, WHICH INCLUDES AN OWNER’S CONTINGENCY IN THE AMOUNT OF $7,894.90, PURSUANT TO SECTION 35.18(C)(5) OF THE CITY’S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

9. 22-0055

MOTION TO APPROVE REQUEST TO ADVERTISE SOLICITATION(S):
(A) TS-22-03 “HEWLETT PACKARD ENTERPRISE SERVER WITH QUMULO FILE DATA PLATFORM”
(B) ED-22-01 "AIR PURIFIERS FOR SCHOOL BUS FLEET"

(C) ED-22-02 "SCHOOL BUS FLOORING REPLACEMENT"
(D) AD-22-01 "KITCHEN EQUIPMENT FOR CITY OF PEMBROKE PINES CHARTER SCHOOLS"

A motion was made to approve 9 (A), (C) and (D) on the Consent Agenda. 9 (B) was pulled for discussion.

10. 22-0056 MOTION TO APPROVE THE PUBLIC TRANSPORTATION GRANT AGREEMENT BETWEEN THE STATE OF FLORIDA DEPARTMENT OF TRANSPORTATION AND THE CITY OF PEMBROKE PINES/SOUTHWEST FOCAL POINT SENIOR CENTER IN THE AMOUNT OF $346,940.00 FOR OPERATING ASSISTANCE.

A motion was made to approve on the Consent Agenda

11. 22-0065 MOTION TO APPROVE THE MINUTES OF THE WEDNESDAY, JANUARY 12, 2022 COMMISSION MEETING.

A motion was made to approve on the Consent Agenda

12. 22-0043 MOTION TO APPROVE ADMINISTRATION'S RECOMMENDATION TO UTILIZE THE PRICING ESTABLISHED FROM THE SOUTHEAST FLORIDA GOVERNMENTAL COOPERATIVE PURCHASING GROUP (CO-OP) AGREEMENT VIA THE CITY OF COCONUT CREEK, AS LEAD AGENCY, RFP NO. 06-06-18-11 WITH CLEAN HARBORS ENVIRONMENTAL SERVICES, INC. FOR HOUSEHOLD HAZARDOUS WASTE COLLECTION & DISPOSAL SERVICES AT AN ESTIMATED ANNUAL COST OF $140,000, PURSUANT TO SECTION 35.18(C)(6) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

Approval of the Consent Agenda

A motion was made by Commissioner Siple, seconded by Commissioner Castillo, to approve Items 1, 2, 3, 4, 5, 8, 9(A), 9(C), 9(D), 10,11 and 12 on the Consent Agenda. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

18. 2022-R-03 MOTION TO ADOPT PROPOSED RESOLUTION 2022-R-03.

PROPOSED RESOLUTION 2022-R-03 IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, SETTING FORTH THE CITY'S INTENT TO USE THE

UNIFORM METHOD FOR THE LEVY AND COLLECTION OF A NON-AD VALOREM SPECIAL ASSESSMENT TO BE LEVIED UPON CERTAIN REAL PROPERTIES LYING WITHIN THE MUNICIPAL BOUNDARIES OF THE CITY, AS MORE PARTICULARLY DESCRIBED IN EXHIBIT "A," ATTACHED HERETO, TO RECOVER THE COSTS ASSOCIATED WITH CITY'S RESIDENTIAL SOLID WASTE COLLECTION SERVICES; STATING A NEED FOR SUCH LEVY; PROVIDING THAT A COPY OF THIS RESOLUTION SHALL BE FORWARDED TO THE PROPERTY APPRAISER, BROWARD COUNTY DIVISION OF FINANCIAL SERVICES (TAX COLLECTOR FOR BROWARD COUNTY) AND THE FLORIDA DEPARTMENT OF REVENUE; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

Item 18 was taken out of order on the agenda for discussion.

A motion was made by Commissioner Schwartz, seconded by Vice Mayor Good Jr., to adopt Proposed Resolution 2022-R-03 pertaining to the City's intent to use the uniform method for the levy and collection of a non-ad valorem special assessment to be levied upon certain real properties in the city to recover costs associated with the city's residential solid waste collection services.

Discussion ensued about whether to defer the item, plan a workshop, or vote down the item to begin again.
Assistant City Attorney said this item would need to be adopted by March 1, 2022.

The motion failed by the following vote:

Nay 5 - Mayor Ortis, Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

PRIOR TO THE VOTE BEING TAKEN:

Item 18 was pulled out of order without objection.

Assistant City Attorney Horowitz read Proposed Resolution 2022-R-03 into the record by title.

Commissioner Schwartz, Commissioner Castillo, Commissioner Siple, and Vice Mayor Good spoke on the item.

Lisa Chong, Finance Director, addressed the questions of the

Commission regarding the franchise fees, administrative fees, and any additional administrative fees that could be billed from the County.

Assistant City Attorney Horowitz responded to the questions of the Commission about tax deductions, about the intent of the proposed resolution, and Statute that provided the allowance for the extension.

AFTER THE VOTE WAS TAKEN:

Commissioner Good spoke about having a workshop.

Commissioner Schwartz said he would rather vote down the item and begin again rather than defer the item.

City Manager Dodge inquired whether the Commission would want to have a workshop to further discuss the matter. Commission indicated there was no consensus to have a workshop.

The item failed.

15. **2021-21** MOTION TO PASS PROPOSED ORDINANCE 2021-21 ON FIRST READING.

PROPOSED ORDINANCE 2021-21 IS AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA PROVIDING FOR THE RE-CREATION AND RE-ESTABLISHMENT OF THE GEOGRAPHIC BOUNDARIES FOR FOUR (4) ELECTION DISTRICTS IN THE CITY OF PEMBROKE PINES IN ACCORDANCE WITH SECTION 3.02 OF THE CITY CHARTER; PROVIDING FOR FINDINGS AND CONCLUSIONS OF THE CITY COMMISSION; PROVIDING FOR THE IMPLEMENTATION OF REVISED ELECTION DISTRICTS TO BE EFFECTIVE FOR THE ELECTIONS HELD IN THE CITY OF PEMBROKE PINES, FLORIDA, FOLLOWING THE EFFECTIVE DATE OF THIS ORDINANCE, AND THEREAFTER; PROVIDING A FORM OF REQUEST TO THE SUPERVISOR OF ELECTIONS OF BROWARD COUNTY, FLORIDA, TO IMPLEMENT THE REVISED PLAN ESTABLISHED PURSUANT TO THIS RE-DISTRICTING ORDINANCE AND TO CREATE FUNCTIONAL DISTRICTS CONSISTENT WITH THE IDENTIFICATION OF GEOGRAPHIC BOUNDARIES FOR ELECTION DISTRICTS; PROVIDING FOR THE ATTACHMENT OF ELECTION DISTRICT MAPS, CHARTS, STREET ADDRESSES, AND GRAPHIC DESCRIPTIONS, WHICH SHALL BE ATTACHED TO AND MADE A

PART OF THIS ORDINANCE; PROVIDING FOR AUTHORIZATION AND DIRECTION TO THE CITY ADMINISTRATION TO IMPLEMENT THE TERMS, CONDITIONS, AND PROVISIONS OF THIS ORDINANCE; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

SECOND AND FINAL READING IS TENTATIVELY SCHEDULED FOR FEBRUARY 16, 2022.

Commissioner Castillo, seconded by Commissioner Siple, moved the item for discussion.

Commissioner Castillo made a motion, seconded by Vice Mayor Good, to approve the existing map with no changes. No action was taken and further discussion ensued.

A second substitute motion was made by Commissioner Siple, seconded by Mayor Ortis, to approve the Alternative 1 Redistricting Map. The motion failed by the following vote:

Aye 2 - Mayor Ortis, and Commissioner Siple

Nay 3 - Vice Mayor Good Jr., Commissioner Castillo, and Commissioner Schwartz

A motion was made by Commissioner Castillo, seconded by Vice Mayor Good Jr., to approve the current City map. The motion failed by the following vote:

Aye 2 - Vice Mayor Good Jr., and Commissioner Castillo

Nay 3 - Mayor Ortis, Commissioner Siple, and Commissioner Schwartz

Commissioner Castillo, seconded by Commissioner Siple, made a motion to approve the Alternative 3 Redistricting Map. Further discussion ensued, whereupon Commissioner Siple withdrew her second to the motion. Therefore the motion to approve Alternative 3 died for lack of a second. No action taken.

A motion was made by Commissioner Siple, seconded by Vice Mayor Good Jr., to table Item 15 to the end of the meeting upon further research and information provided by staff. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

A motion was made by Commissioner Schwartz, seconded by Vice Mayor Good Jr., to defer Proposed Ordinance 2021-21 to March 16, 2022 for first reading. The motion carried by the following vote:

Aye 4 - Mayor Ortis, Vice Mayor Good Jr., Commissioner Siple, and Commissioner Schwartz

Nay 1 - Commissioner Castillo

Commission agreed by consensus to set a special meeting for Wednesday, March 30th, 2022 for the second reading and adoption of Proposed Ordinance 2021-21. There were no objections. Planning & Economic Development Director Mike Stamm spoke of the importance of a timely pre-advertising of the second reading item, if the item passes on first reading with enough time to meet the Broward Supervisor of Elections deadline.

PRIOR TO THE VOTE BEING TAKEN:

Item 15 was taken out of order without objection.

Assistant City Attorney Horowitz read Proposed Ordinance 2021-21 into the record by title and responded to the questions of the Commission on the requirements to meet August primary election deadline.

Commissioner Castillo, Commissioner Schwartz, and Commissioner Siple spoke on the item.

Mike Stamm, Planning and Economic Development Director, addressed the questions of the Commission regarding upcoming development projects and about the deadlines to submit the updated district maps to the Broward Supervisor of Elections.

The item was tabled to obtain further information on the deadline requirement from Broward Supervisor of Elections.

2ND PRIOR TO THE VOTE BEING TAKEN:

Vice Mayor Good re-read Item 15 into the record and called Mr. Stamm to further address the Commission.

Mike Stamm, Planning and Economic Development Director, read the letter addressed to the City from the Broward Supervisor of Elections regarding the requirements to meet the deadlines for upcoming elections. Mr. Stamm also addressed some of the options requested by the Commission that needed further explanation.

Commissioner Castillo, Commissioner Siple, Vice Mayor Good, Commissioner Siple, and Mayor Ortis spoke on the item to discuss a feasible option based upon the presentation from FAU.

Assistant City Attorney Horowitz responded to the Commission about substitute motions according to Roberts Rules of Order.

The item was then tabled a second time for further discussion later in the meeting.

3RD PRIOR TO THE VOTE BEING TAKEN:

Discussion ensued for Item 15 between the members of the Commission to resolve the matter a third time.

Assistant City Attorney Horowitz reiterated the City's Charter with regards to redistricting the maps.

Mike Stamm, Planning and Economic Development Director, addressed the Commission to reiterate the deadline requirement request from the Broward Supervisor of Elections.

AFTER THE VOTE WAS TAKEN:

Mayor Ortis ended the call after the vote on Item 15.

Mike Stamm, Planning and Economic Development Director, inquired about the date to bring the item back for advertisement purposes.

Assistant City Attorney Horowitz addressed the Commission about Special Meetings and that it is at the discretion of the Commission to provide direction.

19. **2022-R-04** MOTION TO ADOPT PROPOSED RESOLUTION 2022-R-04.

PROPOSED RESOLUTION 2022-R-04 IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, APPROVING AND AUTHORIZING THE PROPER CITY OFFICIALS OF THE CITY OF PEMBROKE PINES TO EXECUTE THE FIRST AMENDMENT TO THE MEMORANDUM OF UNDERSTANDING REGARDING COLLABORATIVE STUDY AND SUBSEQUENT DEVELOPMENT OF AN INTEGRATED SOLID WASTE AND RECYCLING SYSTEM WITH BROWARD COUNTY AND OTHER PARTICIPATING MUNICIPALITIES FOR THE PURPOSE OF JOINTLY FUNDING A REGIONAL SOLID WASTE GENERATION STUDY TO INFORM THE CREATION OF A COORDINATED, COST-EFFECTIVE, ENVIRONMENTALLY SUSTAINABLE SYSTEM BY WHICH TO DISPOSE OF SOLID WASTE AND RECYCLABLE MATERIAL ATTACHED HERETO AS EXHIBIT “A” AND INCORPORATED HEREIN; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING AN EFFECTIVE DATE.

A motion was made by Commissioner Siple, seconded by Mayor Ortis, to adopt Proposed Resolution 2022-R-04 authorizing the City to execute the First Amendment to the MOU regarding the collaborative study and development of an integrated solid waste and recycling system with Broward County. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

Enactment No: 3784

PRIOR TO THE VOTE BEING TAKEN:

Assistant City Attorney Horowitz read Proposed Resolution 2022-R-04 into the record, by title.

Commissioner Siple, Commissioner Castillo, Mayor Ortis, and Vice Mayor Good spoke on the item.

Assistant City Attorney Mike Cirullo addressed the matter of the Arcadia Study performed by the Broward Solid Waste Working Group.

City Manager Dodge responded to the Commission about the surrounding Cities that have adopted their resolutions in support of the item.

21. **22-0052** DISCUSSION AND POSSIBLE ACTION REGARDING COMMISSIONER SIPLE'S JANUARY 12, 2022 ITEM # 22-0029, WHICH COMMISSION APPROVED, FOR ADMINISTRATION TO NEGOTIATE WITH WASTE PRO OF FLORIDA, INC. THE OPTION TO USE THE BLUE CARTS, ONCE PER WEEK, FOR CO-MINGLED SOLID WASTE.

Item 21 was taken out of order on the agenda.

A motion was made by Commissioner Siple, seconded by Commissioner Castillo, to approve Item 21 regarding negotiating with Waste Pro of Florida, Inc. the option to use the blue carts for co-mingled waste. The motion carried by the following vote:

Aye 4 - Mayor Ortis, Vice Mayor Good Jr., Commissioner Castillo, and Commissioner Siple

Nay 1 - Commissioner Schwartz

PRIOR TO THE VOTE BEING TAKEN:

Assistant City Attorney Horowitz read Item 21 into the record by title.

Commissioner Siple, Commissioner Castillo, and Commissioner Schwartz spoke on the item.

City Manager Dodge responded to the Commission about the process for solid waste contracts and the options available to the residents who have additional waste, and the potential cost to residents per blue cart.

13. **2020-14** MOTION TO ADOPT PROPOSED ORDINANCE NO. 2020-14 ON SECOND AND FINAL READING.

PROPOSED ORDINANCE NO. 2020-14 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA ADOPTING THE PROPOSED SMALL SCALE FUTURE LAND USE PLAN AMENDMENT AMENDING THE CITY'S LAND USE ON AN APPROXIMATE 5 -ACRE PROPERTY GENERALLY LOCATED ON THE SOUTHEAST CORNER OF PINES BOULEVARD AND 72ND AVENUE, KNOWN AS TRINITY LUTHERAN CHURCH, AND AS MORE PARTICULARLY DESCRIBED IN EXHIBIT "A;" AMENDING THE CITY'S LOCAL LAND USE PLAN MAP FROM COMMUNITY FACILITIES TO COMMERCIAL FOR THE PURPOSE OF DEVELOPING A GAS STATION AND CONVENIENCE STORE ON THE NORTHERN APPROXIMATE 2.74 GROSS ACRES OF THE OVERALL 5 ACRE PROPERTY; PROVIDING FOR TRANSMITTAL OF CERTIFIED COPIES OF THIS ORDINANCE AND TRANSMISSION OF THE UPDATED FUTURE LAND USE PLAN MAP TO THE BROWARD COUNTY PLANNING COUNCIL AND BROWARD COUNTY COMMISSION; REQUESTING BROWARD COUNTY TO AMEND ITS FUTURE LAND USE MAP AND TO RE-CERTIFY THE CITY'S LAND USE MAP; AUTHORIZING AND DIRECTING THE CITY MANAGER AND ALL APPROPRIATE MEMBERS OF CITY ADMINISTRATION TO TAKE ALL ACTION NECESSARY TO EFFECTUATE THE INTENT OF THIS ORDINANCE; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

(PUBLIC HEARING)

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to adopt Proposed Ordinance 2020-14 on second reading on small scale future land use plan amendment amending the City's land use on an approximate 5-acre property related to Trinity Lutheran Church for the purpose of developing the WaWa gas station. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

Enactment No: 1982

PRIOR TO THE VOTE BEING TAKEN:

Assistant City Attorney Horowitz read Proposed Ordinance 2020-14 into the record by title.

Mike Stamm, Planning and Economic Development Director, addressed the Commission regarding the reason for the Land Use Amendment plan.

The following members of the public spoke on the item:

George Koren, 6751 SW 11th Street, Pembroke Pines, FL
John Mendez, 7161 SW 10th Street, Pembroke Pines, FL

14. **2021-30** MOTION TO ADOPT PROPOSED ORDINANCE NO. 2021-30 ON SECOND AND FINAL READING.

PROPOSED ORDINANCE NO. 2021-30 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA, AMENDING CHAPTER 155, THE LAND DEVELOPMENT CODE OF THE CITY OF PEMBROKE PINES, BY AMENDING SECTION 155.401, ENTITLED “ZONING MAP,” TO AMEND THE CITY’S ZONING DISTRICT MAP TO RE-ZONE AN APPROXIMATE 2-ACRE PARCEL OF LAND GENERALLY LOCATED ON THE SOUTHEAST CORNER OF PINES BOULEVARD AND 72 AVENUE, AS MORE PARTICULARLY DESCRIBED IN EXHIBIT “A”; RE-ZONING FROM THE CURRENT ZONING OF A (AGRICULTURAL) TO B-3 (GENERAL BUSINESS); PROVIDING FOR CODIFICATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to adopt Proposed Ordinance 2021-30 on second reading to amend the

City's zoning district map pertaining to 2-acre parcel on SE corner of Pines Boulevard and 72nd Avenue related to Trinity Lutheran Church and WaWa gas station. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

Enactment No: 1983

PRIOR TO THE VOTE BEING TAKEN:

Assistant City Attorney Horowitz read Proposed Ordinance 2021-30 into record by title.

24. 22-0067 COMMISSIONER SIPLE - ITEM 1: MOTION TO DIRECT THE CITY MANAGER TO START DISCUSSIONS WITH COUNTY ADMINISTRATION AND OUR CURRENT REPRESENTATIVES ON THE COUNTY COMMISSION TO REVIEW AND AMEND THE TRAFFIC ENGINEERING AGREEMENT BETWEEN BROWARD COUNTY AND THE CITY OF PEMBROKE PINES AS IT PERTAINS TO NEW REQUESTS FOR TRAFFIC SIGNS AND ROAD MARKINGS.

A motion was made by Commissioner Siple, seconded by Mayor Ortis, to approve Item 24 regarding the review and amending of the Traffic Engineering Agreement between Broward County and the City of Pembroke Pines pertaining to new requests for traffic signs and road markings. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

Commissioner Siple read Item 24 into the record by title and spoke on the item pertaining to the traffic agreement between the County and Pembroke Pines.

Commissioner Castillo, Commissioner Schwartz, and Vice Mayor Good spoke on the item.

22. 22-0063 MOTION TO AUTHORIZE ENTERING INTO AN INTERLOCAL AGREEMENT WITH BROWARD COUNTY, FLORIDA TO HAVE BROWARD COUNTY DESIGNATED AS A QUALIFIED COUNTY IN

THE OPIOID LITIGATION STATEWIDE SETTLEMENT IN ORDER TO DIRECTLY RECEIVE THE REGIONAL FUNDS PORTION OF THE SETTLEMENT FUNDS FOR OPIOID ABATEMENT IN BROWARD COUNTY.

A motion was made by Commissioner Siple, seconded by Commissioner Schwartz, to approve Item 22 to authorize the city to enter into an inter-local agreement with Broward County to have Broward County designated as a qualified county in the opioid litigation statewide settlement to directly receive the regional funds portion of the settlement. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

Assistant City Attorney Horowitz read Item 22 into the record by title.

23. **22-0064** CITY ATTORNEY REPORT: OUTSIDE COUNSEL IN THE PENDING MULTI-DISTRICT OPIOID LITIGATION, IN RE: NATIONAL PRESCRIPTION OPIATE LITIGATION, MDL NO. 2804 (N.D. OHIO), ALSO REPRESENTS THE CITY IN A SEPARATE LITIGATION PEMBROKE PINES V. MCKINSEY & CO., 21-CV-60305 (S.D. FLA.).

A motion was made by Commissioner Castillo, seconded by Mayor Ortis, to approve Item 23, the City Attorney's Report pertaining to the pending multi-district opioid litigation with outside counsel regarding the National Prescription Opiate Litigation. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

Assistant City Attorney Horowitz read the City Attorney's Report Item 23

into the record by title, addressing the multi-district opioid litigation.

Mayor Ortis took a point of privilege to send well wishes to City Attorney Goren.

Vice Mayor Good thanked Mayor Ortis for participating in the meeting remotely. Mayor Ortis left the meeting at approximately 10:20 PM after final discussion of Item 15 on the redistricting maps

Commissioner Schwartz asked how an elected official could go about asking for a transcript from a court case. Assistant city Attorney Horowitz explained the procedures involved in requesting a transcript.

6. **22-0054** MOTION TO AUTHORIZE THE PURCHASE OF ONE HUNDRED AND SIXTEEN (116) LENOVO LAPTOPS FROM INSIGHT PUBLIC SECTOR, UTILIZING THE STATE OF FLORIDA ALTERNATE SOURCE CONTRACT 43211500-WSCA-15-ACS VIA THE NASPO VALUEPOINT MASTER AGREEMENT # MNWNC-117 IN THE AMOUNT NOT TO EXCEED $162,458, PURSUANT TO SECTION 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

A motion was made by Commissioner Siple, seconded by Commissioner Castillo, to approve Item 6 pertaining to the purchase of Lenovo laptops. The motion carried by the following vote:

Aye 4 - Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

Absent 1 - Mayor Ortis

PRIOR TO THE VOTE BEING TAKEN:

Commissioner Siple read Item 6 into the record by title and spoke on the item.

Matthew Kefford, Technology Services Director, addressed the questions of the Commission regarding the disposal of outdated/broken laptops.

7. **22-0003** MOTION TO APPROVE THE FOURTH AMENDMENT TO THE AGREEMENT WITH TOSHIBA BUSINESS SOLUTIONS FOR THE ONE YEAR RENEWAL TERM COMMENCING ON FEBRUARY 2, 2022, AND EXPIRING ON FEBRUARY 1, 2023 AS ALLOWED BY SECTION 3.2 OF THE ORIGINAL AGREEMENT FOR AN AMOUNT NOT TO EXCEED $216,725.03.

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to approve Item 7 to approve the fourth amendment to the agreement with Toshiba Business Solutions for the one year renewal term commencing on February 2, 2022. The motion carried by the following vote:

Aye 4 - Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

Absent 1 - Mayor Ortis

PRIOR TO THE VOTE BEING TAKEN:

Commissioner Castillo read Item 7 into the record by title and spoke on the item.

Commissioner Schwartz spoke on the item.

9(B) **22-0055** MOTION TO APPROVE REQUEST TO ADVERTISE SOLICITATION(S):
(A) TS-22-03 “HEWLETT PACKARD ENTERPRISE SERVER WITH QUMULO FILE DATA PLATFORM”
(B) ED-22-01 "AIR PURIFIERS FOR SCHOOL BUS FLEET"
(C) ED-22-02 "SCHOOL BUS FLOORING REPLACEMENT"
(D) AD-22-01 "KITCHEN EQUIPMENT FOR CITY OF PEMBROKE PINES CHARTER SCHOOLS"

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to approve Section (B) of Item 9 on ED-22-01 Air Purifiers for School Bus Fleet. The motion carried by the following vote:

Aye 4 - Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

Absent 1 - Mayor Ortis

PRIOR TO THE VOTE BEING TAKEN:

Commissioner Siple read Item 9(B) into the record by title and spoke on the item.

Commissioner Schwartz spoke on the item.

City Manager Dodge responded to the questions of the Commission about the air purifying process on the Charter School buses.

QUASI JUDICIAL CONSENT AGENDA:

ORDINANCES AND RESOLUTIONS:

SECOND READING ORDINANCES:

FIRST READING ORDINANCES:

16. 2021-27 MOTION TO PASS PROPOSED ORDINANCE 2021-27 ON FIRST READING.

PROPOSED ORDINANCE 2021-27 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA AMENDING CHAPTER 120, ENTITLED “OTHER BUSINESSES,” BY SPECIFICALLY AMENDING SECTION 120.02, ENTITLED “PERSONAL PROFESSION OR OCCUPATION” TO COMPLY WITH THE PROVISIONS OF SECTION 559.955, FLORIDA STATUTES; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

SECOND AND FINAL READING IS TENTATIVELY SCHEDULED FOR WEDNESDAY, MARCH 2, 2022.

No Action was taken on Proposed Ordinance 2021-27 amending Charter 120 of the City's Charter relating to "Personal Profession or Occupation" to comply with state provisions under F.S. 559.955, specifically home-based businesses. Item 16 was not moved for discussion and therefore failed.

Assistant City Attorney Horowitz read Proposed Ordinance 2021-27 into the record by title.

RESOLUTIONS:

17. **2022-R-01** PROPOSED RESOLUTION IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, AUTHORIZING AND DIRECTING THE SIGNING OF THE SUBMISSION OF A GRANT APPLICATION AND SUPPORTING DOCUMENTS AND ASSURANCES TO THE FLORIDA DEPARTMENT OF TRANSPORTATION (FDOT), AND THE ACCEPTANCE OF A GRANT AWARD FROM THE FDOT, AND THE PURCHASE OF VEHICLES AND/OR EQUIPMENT, AND/OR EXPENDITURES OF GRANT FUNDS; DIRECTING THE APPROPRIATE OFFICIALS TO TAKE AND ALL ACTION NECESSARY TO EFFECTUATE THE INTENT OF THIS RESOLUTION FOR CONFLICTS; PROVIDING FOR SEVERABILITY AND PROVIDING FOR AN EFFECTIVE DATE.

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to adopt Proposed Resolution 2022-R-01, authorizing and directing the signing of the submission of a grant application and supporting documents and assurances to the Florida Department of Transportation (FDOT). The motion carried by the following vote:

Aye 4 - Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

Absent 1 - Mayor Ortis

Enactment No: 3785

PRIOR TO THE VOTE BEING TAKEN:

Assistant City Attorney Horowitz read Proposed Resolution 2022-R-01 into the record by title.

REGULAR AGENDA:

20. **22-0044**

DISCUSSION AND POSSIBLE ACTION REGARDING THE COMMUNITY RATING SYSTEM (CRS) AND THE POTENTIAL FOR THE CITY TO INCREASE ITS RANKING ONE OR MORE LEVELS TO PROVIDE FOR A LARGER FLOOD INSURANCE PREMIUM DISCOUNT FOR RESIDENTS BY HIRING A FIRM TO ASSIST THE CITY IN INCREASING THE CITY'S CRS RATING, PURSUANT TO SECTION 35.18(C)(2) OF THE CITY'S CODE OF ORDINANCES.

A motion was made by Commissioner Castillo, seconded by Vice Mayor Good Jr., to approve item 20 pertaining to increasing the City's Community Rating System (CRS) for a larger flood insurance premium discount for residents. The motion carried by the following vote:

Aye 4 - Vice Mayor Good Jr., Commissioner Castillo, Commissioner Siple, and Commissioner Schwartz

Nay 0

Absent 1 - Mayor Ortis

PRIOR TO THE VOTE BEING TAKEN:

Assistant City Attorney Horowitz read Item 20 into the record by title.

REPORTS OF LEAGUE REPRESENTATIVES

REPORTS OF THE CITY MANAGER AND CITY ATTORNEY

COMMISSION ITEMS:

NEW BUSINESS:

OLD BUSINESS:

ADJOURN - 11:00 P.M.

CITY OF PEMBROKE PINES

Marlene D. Graham, CMC
City Clerk